

HOUSE No. 2280

The Commonwealth of Massachusetts

PRESENTED BY:

Kevin G. Honan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish commonsense permitting reforms for businesses and landowners.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>1/16/2025</i>

HOUSE No. 2280

By Representative Honan of Boston, a petition (accompanied by bill, House, No. 2280) of Kevin G. Honan relative to zoning variances. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2064 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish commonsense permitting reforms for businesses and landowners.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9 of chapter 40A, as so appearing, is hereby amended by striking
2 out the first paragraph and inserting in place thereof the following paragraph:-

3 Zoning ordinances or by-laws shall provide for specific types of uses which shall only be
4 permitted in specified districts upon the issuance of a special permit. Special permits may be
5 issued only for uses which are in harmony with the general purpose and intent of the ordinance
6 or by-law, shall be subject to general or specific provisions set forth therein, and shall run with
7 the land and shall not be personal to the applicant or owner of the property. Such permits may
8 also impose conditions, safeguards and limitations on time or use.

9 SECTION 2. Section 10 of chapter 40A, as so appearing, is hereby amended by striking
10 out the first paragraph and inserting in place thereof the following paragraphs:-

11 The permit granting authority shall have the power, after public hearing for which notice
12 has been given by publication and posting as provided in section eleven and by mailing to all
13 parties in interest, to grant a variance from the terms of the applicable zoning ordinance or by-
14 law where such permit granting authority specifically finds that a literal enforcement of the
15 provisions of the ordinance or by-law would result in a practical difficulty. In making its
16 determination, the permit granting authority shall take into consideration the benefit to the
17 applicant if the variance is granted, as weighed against the detriment to the health, safety, and
18 welfare of the neighborhood by such grant. In making such determination, the permit granting
19 authority shall also consider: (1) whether an undesirable change will be produced in the character
20 of the neighborhood or a significant detriment to nearby properties will be created in the granting
21 of the dimensional variance; (2) whether the benefit sought by the applicant can be achieved by
22 some method, feasible for the applicant to pursue, other than a dimensional variance; (3) whether
23 the requested dimensional variance is substantial; (4) whether the proposed variance will have a
24 significant adverse impact on the physical conditions in the neighborhood; and (5) whether the
25 alleged difficulty was self-created, which consideration shall be relevant to the decision of the
26 permit granting authority, but shall not necessarily preclude the granting of the dimensional
27 variance.

28 Except where local ordinances or by-laws shall expressly permit variances for use, no
29 variance may authorize a use or activity not otherwise permitted in the district in which the land
30 or structure is located; provided, however, that such variances properly granted prior to January
31 first, nineteen hundred and seventy-six but limited in time, may be extended on the same terms
32 and conditions that were in effect for such variance upon said effective date. No variance may
33 authorize a use or activity not otherwise permitted in the district in which the land or structure is

located unless the permit granting authority specifically finds that owing to circumstances relating to the soil conditions, shape, or topography of such land or structures and especially affecting such land or structures but not affecting generally the zoning district in which it is located, a literal enforcement of the provisions of the ordinance or by-law would involve substantial hardship, financial or otherwise, to the petitioner or appellant, and that desirable relief may be granted without substantial detriment to the public good and without nullifying or substantially derogating from the intent or purpose of such ordinance or by-law.

SECTION 3. Chapter 40A is hereby amended by inserting after the Section 7 the following section:-

Section 7A. Site Plan Review

(a) As used in this section, “site plan review” shall mean a separate review under a municipality’s zoning ordinance or by-law, by the planning board, of a plan showing the proposed on-site arrangement of, parking, pedestrian and vehicle circulation, utilities, grading and other site features and improvements existing or to be placed on a parcel of land, in connection with the proposed use of land or structures. Under site plan review, an applicant proposing the development or redevelopment of land for a use that is authorized by right under the local zoning ordinance or by-law presents a plan and other information relevant to the site design of the proposed development to the planning board, which may take input from municipal departments and parties in interest. Such review shall take place under this section only where the proposed use does not require a special permit or variance under the local by-law or ordinance.

(b) Cities and towns may require such site plan review under a local ordinance or by-law adopted prior to the effective date of this section, or thereafter under this section. Site plan review may be required before a building permit is granted for the construction, reconstruction, or expansion of structures for a use not requiring a special permit or variance, as well as before the commencement of site development not requiring a building or special permit. The planning board may adopt, and from time to time amend, rules and regulations to implement the local site plan review ordinance or by-law, including provisions for the imposition of reasonable fees for the employment of outside consultants in the same manner as set forth in section 53G of chapter 44.

(c) An ordinance or by-law requiring site plan review, whether adopted under this section or previously adopted under the municipality's home rule authority, shall comply with the provisions of this and all following subsections of Section 7A. The ordinance or by-law shall establish the submission, review, and approval process for applications, which may include the requirement of a public hearing held pursuant to the provisions of section eleven of this chapter. Approval of a site plan shall require a simple majority vote of the planning board and the planning board's written decision shall be filed with the city or town clerk within the time limits prescribed by the ordinance or by-law, not to exceed 90 days from the date of filing of the application. If no decision is filed within the time limit prescribed, the site plan shall be deemed constructively approved as provided in section 9, paragraph 11 of this chapter.

(d) The decision of the planning board may require only those conditions that the applicant has agreed to make or that otherwise are within the planning board's power under the applicable ordinance or by-law and is determined by the planning board to be necessary to ensure substantial compliance of the proposed improvements with the requirements of the zoning

ordinance or by-law or to reasonably mitigate any extraordinary direct adverse impacts of the proposed improvements on adjacent properties. A site plan application may be denied only on the grounds that: (i) the proposed site plan cannot be conditioned to meet the requirements set forth in the zoning ordinance or by-law; (ii) the applicant failed to submit the information and fees required by the zoning ordinance or by-law necessary for an adequate and timely review of the design of the proposed land or structures; or (iii) there is no feasible site design change or condition that would adequately mitigate any extraordinary direct adverse impacts of the proposed improvements on adjacent properties.

(e) Zoning ordinances or by-laws shall provide that a site plan approval granted under this section shall lapse within a specified period of time, not less than two years from the date the planning board files its decision with the city or town clerk, if substantial use or construction, including substantial investment in site preparation or infrastructure construction, has not yet begun. The aforesaid minimum period of two years may, by ordinance or by-law, be increased to a longer period. If an appeal is filed, the commencement of the lapse period shall be measured from the date of the dismissal of the appeal or entry of final judgment in favor of the applicant. The period for lapse may be extended for good cause by a majority vote of the planning board.

(f) Site plan review decisions may be appealed under Section 17 in the same manner as a special permit. A complaint by a plaintiff challenging a site plan approval under this section shall allege the specific reasons why the planning board exceeded its authority in approving the site plan and shall allege specific facts establishing how the plaintiff is aggrieved by such decision. The planning board's decision in such a case shall be affirmed unless the court concludes that the decision exceeded the planning board's authority under subsection (d).

(g) The submission and review process for a site plan submitted in connection with an application for a use that requires a special permit or use variance shall be in conjunction with the submission and review of such special permit or variance application in a coordinated process and shall not be subject to a separate site plan review hearing or process under this section or any local ordinance or by-law.

(h) In municipalities that adopted a zoning ordinance or by-law requiring some form of site plan review prior to the effective date of this act, the provisions of this Section 7A shall not be effective with respect to such zoning ordinance or by-law until one year after the effective date of this act.

SECTION 4. Chapter 40A of the General Laws, as so appearing, is hereby amended by inserting the following section:-

Section 18. Exactions. No decision under this chapter shall be based on the exaction of monetary payment or property from the applicant or landowner unless the decision contains explicit findings of fact and conclusions demonstrating that the exaction so required or requested satisfies federal constitutional requirements.

SECTION 5. Section 81Q of chapter 41, as so appearing, is hereby amended by inserting after the eleventh sentence the following sentence:-

No decision concerning a plan of a subdivision shall be based on the exaction of monetary payment or property from the applicant or landowner unless the decision of the planning board contains explicit findings of fact and conclusions demonstrating that the exaction so required or requested satisfies federal constitutional requirements.

SECTION 6. Section 40 of chapter 131, as so appearing, is hereby amended by striking out the eighteenth paragraph and inserting in place thereof the following paragraph:-

If after said hearing the conservation commission, selectmen or mayor, as the case may be, determine that the area on which the proposed work is to be done is significant to public or private water supply, to the groundwater supply, to flood control, to storm damage prevention, to prevention of pollution, to protection of land containing shellfish, to the protection of wildlife habitat or to the protection of fisheries or to the protection of the riverfront area consistent with the following purposes: to protect the private or public water supply; to protect the ground water; to provide flood control; to prevent storm damage; to prevent pollution; to protect land containing shellfish; to protect wildlife habitat; and to protect the fisheries, such conservation commission, board of selectmen or mayor shall by written order within twenty-one days of such hearing impose such conditions as will contribute to the protection of the interests described herein, and all work shall be done in accordance therewith. No order shall be based on the exaction of monetary payment or property from the applicant or landowner unless the written order contains explicit findings of fact and conclusions demonstrating that the exaction so required or requested satisfies federal constitutional requirements. If the conservation commission, selectmen or mayor, as the case may be, make a determination that the proposed activity does not require the imposition of such conditions, the applicant shall be notified of such determination within twenty-one days after said hearing. Such order or notification shall be signed by the mayor or a majority of the conservation commission or board of selectmen, as the case may be, and a copy thereof shall be sent forthwith to the applicant and to the department.